

Smt.Thimmamma vs Smt.Varalakshmi on 26 October, 2016

IN THE COURT OF THE 42nd ADDL. CITY CIVIL & SESSIONS
JUDGE AT BENGALURU CITY (CCH.NO.43).

PRESENT: Sri.BAILUR SHANKAR RAMA,
B.Sc., M.A., LL.B.(Spl),
nd
42 ADDL. CITY CIVIL AND
SESSIONS JUDGE, BENGALURU.

Dated this the 26th day of October 2016.

O.S.No.5302/2010

Plaintiff:- Smt.Thimmamma,
W/o.Late Thimmaiah,
Aged about 65 years,
R/at No.69, 1st Main Road,
Kamalanagar,
Bangalore-79.

(By-Smt.Jayashree.G.Srinivas, Adv.)

v.

Defendant:- Smt.Varalakshmi,
W/o.Munikrishna,
D/o.Late Thimmaiah,
Aged about 21 years,
R/at No.69, 1st Main Road,
Kamalanagar,
Bangalore-79.

(By - Sri.K.V.Venkatesh, Adv.)

Date of institution of the suit	:	30.07.2010
Nature of the suit	:	Partition & Separate Possession
	2	O.S.No.5302/2010
Date of commencement of Recording of the evidence	:	20.06.2011
Date on which the Judgment	:	26.10.2016

was pronounced

Total Duration	:	Years	Months	Days
		06	02	26

(BAILUR SHANKAR RAMA)

42 nd
ADDL. CITY CIVIL & SESSIONS JUDGE,
Bengaluru.

JUDGMENT

This is a suit filed by the plaintiff against the defendant for partition and separate possession and costs.

2. The brief facts averred in the plaint are that:-

The suit schedule property was acquired by husband of the plaintiff - Sri.Thimmaiah through "Ashraya Yojane"

allotted by the Government of Karnataka. The Tahasildar, Bangalore North Taluk issued Hakku Pattra dated 21.05.1992 in respect of the property morefully described in the schedule. Thereafter, the plaintiff and her husband had constructed house consisting of ground floor and first floor. There are 4 shops in the ground floor and 2 residential houses in the first floor, obtained electricity installation, water connection to the schedule property from the concerned authorities. At the relevant point of time, her husband was plying auto rickshaw and the plaintiff was working as a cleaner of rice and ragi in a Departmental Store in Basaveshwara Nagara and also working as an Attender in the Max Mullar School. The plaintiff also contributed to acquire and to put up construction in the suit schedule property. As the plaintiff did not bore a child for Sri.Thimmaiah even several years after the marriage she and her husband adopted one Savithri as their fostered daughter and performed her marriage. The plaintiff submits that later her husband started threatening her that he will contract for second marriage and he manage to develop illegal relationship with mother of the defendant - Smt.Gowramma and out of his said relationship, defendant was born. Her husband - Sri.Thimmaiah died on 28.06.2004, leaving behind his estate intestate. After his death, the plaintiff with the humanitarian consideration and having regards for her husband, permitted the defendant and her mother - Smt.Gowramma to stay with her in the suit schedule property. Both plaintiff and said Smt.Gowramma started receiving rents from the tenants and sharing equally. The defendant and her mother taking undue advantage of the situation as the plaintiff

gave shelter to them, started harassing the plaintiff and finally thrown her out with bare hand by taking all her belongings and household articles. The plaintiff with the help of brothers of her late husband and others, convene a Panchayath and they intervened and provided a house to the plaintiff to the next door of the defendant. Katha in respect of the suit schedule property was jointly effected in the names of the plaintiff and mother of defendant by the BBMP. Even thereafter, the defendant started showing hostile attitude, every time threatening her to kill, contending that entire property will be devolved upon her on the ground that her late husband - Sri.Thimmaiah bequeathed the property in her name and also the defendant and her mother forcing her to execute some documents in favour of them. The plaintiff submits that her deceased husband was a drunkard and he was suffering from severe liver related problems. Since more than 6 months from the date of his death, was unable to move and he never executed any such Will as alleged by the defendant. She submits that the alleged Will is a created and forged document with the malafide intention to knock off the legitimate share of the plaintiff in respect of suit schedule property. Therefore, the plaintiff submits that she is having half share in the suit schedule property. Hence, the suit.

3. After the service of suit summons, the defendant has appeared before court through her advocate and filed the written statement, admits that the plaintiff is first wife of deceased Sri.Thimmaiah. She submits that as plaintiff was issueless, Sri.Thimmaiah married to her mother - Smt.Gowramma and out of their wedlock, defendant was born. The suit schedule property is the exclusive self acquired property of her father - late Sri.Thimmaiah, who had acquired it through the Government grant under "Ashraya Yojane" and Hakku Pathra was issued in his name. She has denied that the plaintiff was working as a cleaner of rice and ragi in a Departmental Store and working as an Attender in Max Mullar School and she had contributed in acquisition of the property and construction of the building along with her husband. Her father - Sri.Thimmaiah was plying auto rickshaw, had sufficient income of his own and he had put up the construction by spending his own money. The defendant and her mother have resided in the very same house in the same property along with plaintiff and her husband. Even after the death of Sri.Thimmaiah, they continued to reside along with the plaintiff. The contention of the plaintiff that she and her husband adopted one Savithri as their fostered daughter and performed her marriage is false. As the plaintiff did not bore any children Sri.Thimmaiah married to mother of defendant - Smt.Gowramma, with the consent of the plaintiff and also family members of Sri.Thimmaiah. The allegation that he started threatening life of the plaintiff and harassed her, gave a threat to contract for second marriage and he developed illicit relationship with Smt.Gowramma and out of that relationship, defendant was born and after the death of Sri.Thimmaiah, out of humanitarian consideration she has allowed the defendant and her mother to stay in the suit schedule property, are all false and denied by the defendant. Late Sri.Thimmaiah married for the second time with Smt.Gowramma and they together resided along with plaintiff in the suit schedule property. As Sri.Thimmaiah was looking after both of his wives and defendant, when he fell ill and bed ridden, in order to avoid litigation between plaintiff and defendant and her mother, has written a Will dated 20.02.2004, when he was mentally healthy. Through the said Will he had given limited rights to the plaintiff and Smt.Gowramma, both of his wives, to enjoy the suit schedule property by receiving rents from the tenants in respect of 4 shops

situated at ground floor during their lifetime. He has made it clear in the Will, showing his intention that after the death of his wives suit schedule property shall devolve to the defendant as a whole as sole successor and exercise the right as owner. As it was arranged, both the wives shall receive rents from the tenants. Katha was changed in the names of Smt.Gowramma and plaintiff. As the plaintiff tried to sell the sell property taking advantage of her name in the katha, defendant filed O.S.No.7594/2009 on the file of this court for the relief of injunction. Since katha was standing in the name of her mother - Smt.Gowramma in respect of suit schedule property, she is also necessary party to this suit and suit is bad for non-joinder of necessary party. She also contended that suit is not properly valued and court fee paid is insufficient. Hence, the defendant claims as per terms of Will executed by her late father suit of the plaintiff is not maintainable for partition and sought for dismissal of the same.

4. Basing on the rival pleadings the following issues are framed:-

ISSUES

1. Whether defendant proves that Thimmaiah has executed Will dated 20.02.2004 bequeathing the suit property in favour of defendant, beyond all suspicious circumstances?
2. Whether plaintiff is entitled for partition and separate possession of her share in suit property? If yes, at what share?
3. Whether defendant proves that the suit is bad for non-joinder of necessary parties?
4. Whether defendant proves that court fee paid is not proper?
5. Whether plaintiff is entitled for the reliefs sought for?
6. What order or decree?

5. The plaintiff got herself examined as PW-1 and one witness on her behalf as PW-2 and got marked Ex.P1 to P17 and closed her side. The defendant got herself examined as DW-1 and one witness on her behalf as DW-2 and got marked Ex.D1 to D4 and closed her side.

6. After the closure of the evidence, arguments were heard.

7. My answers to the above issues are as under:-

Issue No.1:-	In the negative.
Issue No.2:-	In the affirmative.
Issue No.3:-	In the negative.
Issue No.4:-	In the negative.
Issue No.5:-	In the affirmative.
Issue No.6:-	As per final Order.

For the following:

REASONS

8. ISSUES NOS.1 TO 3 & 5:-

For the sake of convenience these issues are taken up together for discussion to avoid repetition of facts and evidence.

The pleaded case of the plaintiff is that her husband - late Sri.Thimmaiah was granted site under "Asharaya Yojane" on 21.05.1992. Her husband was plying auto rickshaw and she was working as a cleaner of rice and ragi in a Departmental Store and also working as an Attender in Max Mullar School, she has contributed her earnings to her husband and both together have constructed the building in the suit schedule property. It is her case that as she did not bore any children, her husband started harassing her and threatening her of marrying second time and developed illicit relationship with Smt.Gowramma and out of such relationship, defendant was born. After the death of Sri.Thimmaiah, she allowed the defendant and her mother to stay in the suit schedule house, subsequently the defendant started harassing the plaintiff and tried to driven her out, Panchayath was held, the brothers of late Sri.Thimmaiah and others arranged for change of katha in the names of both plaintiff and Smt.Gowramma and they should share the rentals recovered from the tenants. It is her case that as the defendant deprived her from enjoying the property, she demanded partition. She is having 1/2 legitimate share in the suit schedule property. That is the reason she has filed the instant suit for partition and separate possession.

9. The defence set out by the defendant is as the plaintiff did not bore a child to Sri.Thimmaiah, she herself and brothers of late Sri.Thimmaiah, arranged marriage of Sri.Thimmaiah with Smt.Gowramma. Accordingly, Sri.Thimmaiah married for the second time with Smt.Gowramma and out of their wedlock defendant was born. It is her case that the suit schedule property is the absolute self acquired property of late Sri.Thimmaiah, he had left a Will dated 20.02.2004 with an intention that the property should go to his daughter and only life estate is created in favour of both the wives, that they should enjoy the property till their death and recover rentals from the tenants and they don't have any right to alienate the property and after their death, it devolve on the defendant i.e., his daughter. Therefore, it is her contention that just to defeat the last wishes of her father, the plaintiff has falsely contended that during the lifetime of Sri.Thimmaiah, she had taken in adoption one Savithri, who is her sister's daughter and they fostered her and performed her marriage. In fact, the defendant alone is the daughter of Sri.Thimmaiah. Late Sri.Thimmaiah never adopted neither Savithri nor any girl and the plaintiff is not entitled to get share in the property, much less 1/2 share what she has contended. It is her say that as per the terms of the Will both Smt.Gowramma and plaintiff are receiving rentals separately from the tenants and sharing it and she is also residing in one of the portions of the suit schedule property, All the allegations that the defendant started harassing her, threatened her and assaulted her and driven her out from the premises by snatching her valuables and documents, these are all story created by her. Therefore, the defendant sought for dismissal of the suit.

10. In this case, the plaintiff has claimed half share recognizing that defendant is the daughter of her late husband - Sri.Thimmaiah through Smt.Gowramma. The admitted facts are that, under "Ashraya Yojane" suit site was granted to Sri.Thimmaiah in the year 1992 and Hakku Pathra was issued in his favour. Whether the plaintiff has also contributed money for construction of building or not is to be proved by the plaintiff. Suffice in this case, the defendant is able to prove the Will dated 20.02.2004 - Ex.D2 to the satisfaction of the court, that it is the last and genuine Will left by late Sri.Thimmaiah in respect of the suit schedule property and it is the defendant as a testamentary heir to him has succeed the property, only life estate is created in favour of the plaintiff and mother of the defendant to receive rentals and enjoyment of the property till their death and the plaintiff is not entitled to claim share in the property. Therefore, it is necessary to appreciate the evidence under the background of the contentions raised by the defendant in her written statement.

11. Here, in this case, the defendant is the daughter of Smt.Gowramma. As per the respective averments in the pleadings, plaintiff - Smt.Thimmamma is the legally wedded wife of deceased Sri.Thimmaiah. She is the first wife. The defendant claims that her mother - Smt.Gowramma is the second wife of Sri.Thimmaiah and out of their wedlock, defendant was born on 27.02.1988. PW-1 in her evidence has stated that as she did not bore a child for her husband out of their wedlock even after several years of marriage, late Sri.Thimmaiah started threatening her that he will contract for second marriage and later on developed illicit relationship with Smt.Gowramma and out of said relationship defendant is born. Whereas, DW-1 has stated that PW-1 being the first wife, as she was issueless, she herself performed the marriage of Sri.Thimmaiah with Smt.Gowramma.

12. The evidence of PW-2, who is the elder brother of late Sri.Thimmaiah is very relevant in this aspect that he himself performed the marriage of his younger brother - Sri.Thimmaiah with Smt.Gowramma. The marriage Invitation Card is produced at Ex.D4, which is admitted by PW-2 that Sri.Thimmaiah had married to Smt.Gowramma on 09.05.1987. Therefore, say of PW-1 that Sri.Thimmaiah had developed illicit relationship with Smt.Gowramma and out of the said relationship defendant was born, is a false statement. However, she admits that in the very same house, she along with Sri.Thimmaiah, Smt.Gowramma and defendant had lived. Of course, she has stated that after the death of her husband, out of humanitarian consideration she has allowed them to stay with her. But, one thing is clear that Smt.Gowramma and defendant had lived in the very same house along with late Sri.Thimmaiah and she is the second wife of late Sri.Thimmaiah.

13. But admittedly the marriage of Smt.Gowramma with Sri.Thimmaiah was performed on 09.05.1987 during the valid subsistence of marriage of Sri.Thimmaiah with PW.1-Smt.Thimmamma. Merely, because she did not bore a child to him, cannot a ground for a Hindu to contract for second marriage with another woman. Therefore, his marriage with Smt.Gowramma is barred under the provisions of Hindu Marriage Act, 1955 and it is a null and void as it contravenes Section 5 of Hindu Marriage Act, 1955 and Section 11 of the Act. Therefore, even though she is a second wife, for all practical purposes marriage of Smt.Gowramma with Sri.Thimmaiah cannot be regarded as a legal marriage, which doesn't confer her a status of wife. However, it is an admitted fact that out of the said wedlock only as a result of void marriage, defendant was born and she is the daughter of late Sri.Thimmaiah through Smt.Gowramma. Therefore, after the death of Sri.Thimmaiah on 28.06.2004 as per the Death Certificate - Ex.P1, the property left behind by him

would devolve on his first wife i.e., PW.1 - Smt.Thimmamma and his daughter born through void marriage i.e., DW.1 - Smt.Varalakshmi. Because under Section 16 of the Hindu Marriage Act, even though marriage of Smt.Gowramma with Sri.Thimmaiah is null and void, but the children born out of such wedlock are entitled to succeed to the assets left behind by the father.

14. But in this case, DW-1 claims that she is the testamentary heir of Sri.Thimmaiah by producing Will Deed dated 20.02.2004 at Ex.D2. PW-1 has stated that her late husband has not left any Will Deed and this document is created by Smt.Gowramma and defendant just to knock off the property. However, she has rightly arrayed the daughter through Smt.Gowramma by her husband as a defendant in this case stating that she is having half share in the property. Therefore, heavy burden is on the defendant to prove the execution of the Will and to remove all suspicious circumstances surrounded the Will at this juncture.

15. It is the case of the defendant that only life estate is created by her late father in favour of both wives and they were given right to enjoy the property till their death, recovering the rents from the tenants and equally shared by them, for which DW-1 has no objection. It is her case that based on the Will only property after the death of Sri.Thimmaiah, katha was transferred in the name of Smt.Thimmamma as well as Smt.Gowramma jointly and after their death DW-1 should succeed to the property as an absolute owner. She has produced Ex.D3 - Katha Extract dated 09.11.2009, which shows names of both Smt.Thimmamma and Smt.Gowramma in Column No.4 as owners of the schedule property. PW-1 has also produced Katha Extract - Ex.P2, Ex.P3 - Electricity Bill and Ex.P4 - another Katha Extract, as on today the property is standing in the names of both Smt.Thimmamma and Smt.Gowramma. Katha maintained by the BBMP is only for the physical purpose, it is not a title document. It is only maintained for recovery of taxes. Therefore, merely because name of Smt.Gowramma is also included jointly with PW-1, it cannot be inferred that property devolved on her also and did had the right to succeed to the assets of late Sri.Thimmaiah. Much is made that it was so entered in their joint names based on the Will Deed - Ex.D2. It is the case of PW-1 that, Will Deed is a created document, it was not in existence at all, as PW-1 allowed them to stay along with her as regards taking of rents from the tenants some dispute arose, Panchayath was held in the presence of brothers of late Sri.Thimmaiah and they arranged by putting the suit schedule property in the joint kathas of both Smt.Thimmamma and Smt.Gowramma. That is what PW.2

- elder brother of late Sri.Thimmaiah has deposed in his evidence. He has categorically stated that defendant being greedy had occupied and enjoying more the property than the plaintiff and he has specifically stated that defendant or her mother - Smt.Gowramma have not disclosed about execution of Will to him and his other brothers at any point of time and only recently after filing of this case, he came to know about the said alleged Will set up by the defendant. That is the reason in the cross-examination he has stated that, he himself had arranged to transfer katha in the joint names of both the wives of late Sri.Thimmaiah. Naturally, he himself has performed the marriage of Smt.Gowramma with his younger brother - late Sri.Thimmaiah. Natural step elders of the family would take to resolve the dispute is to see that both the wives should enjoy the property equally as there was no whisper regarding the existence of the Will left behind by late Sri.Thimmaiah. As an elderly person PW.2 had arranged for transfer of katha in the joint names of both Smt.Thimmamma and Smt.Gowramma.

16. In the cross-examination of PW-2, he has categorically stated that his brother deceased Sri.Thimmaiah was an illiterate and he was plying auto rickshaw. He has never executed the Will Deed - Ex.D2. He has deposed that his younger brother - Sri.Thimmaiah was not in the habit of doing any work without informing him. No doubt, he admits that he is residing at Malleshwaram and Sri.Thimmaiah was residing at Kamalanagar. But thing is that, it is PW-2 had performed his marriage with Smt.Gowramma. That means, his relationship with his elder brothers and other members of his family, was cordial. Therefore, even after the death of Sri.Thimmaiah, PW-1 had taken assistance of her brother- in-law. As there was no whisper regarding the Will Deed at the particular point of time, he had arranged for transfer of katha in the names of both Smt.Thimmamma and Smt.Gowramma. Therefore, what he has said that his brother was not in the habit of doing anything without informing him, that too, when a major decision with regard to his property and his family members was taken by him, it is natural that he should share his views with his elder brother, is expected. He has stated that his brother used to inform him before executing any document. He has stated that after he got changed the katha in the names of Smt.Thimmamma and Smt.Gowramma, they are receiving the rentals in respect of their respective portions.

17. At this stage, cross-examination of DW-1 is relevant. Because PW-1 and PW-2 have out rightly stated that Ex.D2 - Will Deed is a created document and late Sri.Thimmaiah was not keeping in good health since 1½ years of his death and he was chronic alcoholic and he was suffering from acute liver problem and not in a position to move around and PW-2 has stated that his brother never discussed with him about dispossession of the assets and Ex.D2 - Will Deed is not executed by his brother and it doesn't bear the signature of his younger brother. According to the evidence of PW-1 and PW-2, Ex.D2 Will Deed is a created document. Here, though PW-1 has not produced any document in this suit to show that her husband late Sri.Thimmaiah was admitted to hospital and he was suffering from severe liver problem and not in a sound disposing state of mind, but DW-1 admits that her father was an alcoholic and what she has stated in her cross-examination that her father was an illiterate, but he used to sign only. In page No.7 of the deposition she has stated that she doesn't know who has written the Will Deed

- Ex.D2. According to her, Smt.Gowramma - her mother knew about it, she herself handed over the Will in her hand. She has not examined her mother - Smt.Gowramma to prove the said fact. Her mother had not signed on Ex.D2. She admits that witnesses to the said Will Deed are her relatives. But it is her case that both the witnesses were also plying auto rickshaw and they were the friends of her father - late Sri.Thimmaiah. We can gather that during 2004, late Sri.Thimmaiah must be around 50 years of age. Though she has denied the suggestion that her father died due to severe liver damage and he was suffering from any disease, but she admits that once her father was admitted to St.Theresa Hospital, Rajajinagar, Bangalore, It is her say that, she doesn't know whether Will executed by Sri.Thimmaiah was registered or not. It was only with her mother - Smt.Gowramma. DW-1 resided along with her mother in the suit schedule property only. May be, during 2004 she was going to College, she has denied that she and her mother created the Will - Ex.D2 and also it doesn't bear the signature of her father. According to her, witnesses to the Will i.e., Sri.Nagaraj and Sri.Arethimmappa, are residing at Kamakshipalya. But the evidence of attesting witness i.e., DW.2 - Sri.H.H.Arethimmappa in the chief affidavit he has stated that his address as Pantharapalya, Old Check Post, Mysore Road, Bangalore. But in the cross- examination he has stated that, he is not

residing in the said address now, but residing at Badekodaganahalli, Devanahalli. His chief affidavit was filed on 24.03.2016 and cross-examination was recorded on 02.04.2016, why he has shown the wrong address of his residence, is a question. According to DW-1, he is residing at Kamakshipalya. If he is a family friend of late Sri.Thimmaiah and used to visit their house and DW-1 was acquainted with him, why this discrepancy occur. It throw light on the fact that, as regards the conduct of DW-2 showing wrong address, which throw light on the allegations made by PW-1 that he is not the very person, whose name is mentioned in the alleged Will Deed - Ex.D2 and this witness is a created witness. He has not produced any Ration Card, Voters List or Driving License, because he is engaged in plying auto rickshaw.

18. One more circumstance worth to appreciate is that, according to DW-2 he is not in the habit of visiting the house of Sri.Thimmaiah, he has hardly visited once or twice. That is again differs from the statement of DW-1. In page 5 of the cross-examination, he says that he doesn't know the education of Sri.Thimmaiah. He knows reading and writing. When he died he may be aged about 50 years. He has not visited the hospital when he was admitted to the hospital and he has not attended his funeral. But he shows his ignorance about the health conditions of late Sri.Thimmaiah. However, admits that he was a drunkard. But clear admission given by him that prior to 1½ years of his death he was suffering from ill health. He was in talking terms with Sri.Thimmaiah. That means, what PW-1 has stated that he was a heavy drunkard and suffered from severe liver problem since 1½ years prior to his death, he was not doing any work, move around and he was under the treatment, what PW-1 and 2 have stated in their evidence, has gain support from the evidence of DW-2. Where and when the Will Deed was executed is again a question, because he was not keeping sound health at the relevant point of time, can very well be gathered.

19. No doubt, Will is a Solomon document attached with sanctity come into existence only after the death of the testator. It has to be proved by examining atleast one of the attesting witnesses and further it is required that legatee under the Will has to remove all the suspicious circumstances surrounding the Will. Here, according to DW.1 she was not present at the time of executing the Will. What she says that it was executed by her father in the house and her mother - Smt.Gowramma must knowing the details of it. She has not examined that Smt.Gowramma.

20. To prove Will - Ex.D2 in accordance to Section 63 of the Indian Succession Act and Section 68 of the Evidence Act, the defendant had examined DW-2. What he has stated in the chief that late Sri.Thimmaiah had executed the Will dated 20.02.2004 in respect of suit schedule property in favour of his daughter - Smt.Varalakshmi. At the time of execution of the Will, he was present and Sri.Thimmaiah asked him to put his signature to the Will as a witness. He has read over the contents of the Will, typed in Kannada language and understand the Will and affixed his signature on the Will. Therefore, before him only Will was executed, he has read over the contents. But he has not stated that in his presence testator - Sri.Thimmaiah had signed and in the presence of the testator, both the attesting witnesses have signed. But what it goes to show that Will was executed in the house of the testator. Because, at the relevant point of time he was suffering from liver problem and he was under treatment is a factor need be appreciated.

21. In the cross-examination, DW-1 has stated that he was not in the habit of visiting the house of Sri.Thimmaiah, hardly once or twice he has visited. Even he had not attended his funeral nor visited him in the hospital. Here, he has stated that he is also an rickshaw driver and he used to meet him in Vijayanagara, Rajajinagara Housing Board and Basaveshwaranagara. When he was sitting at Rajajinagar Housing Board Area, Sri.Thimmaiah and Sri.Nagaraj brought the typed Will and they took his signature and he doesn't know who has typed the Will. That means, what he has stated in the chief he has given clear go bye. Though in the further cross, he has denied the suggestion that he has not seen Sri.Thimmaiah and Sri.Nagaraj signing the Will. But in the chief examination he has not deposed the said fact. The very fact that it was a written Will brought while he was sitting near Rajajinagar Housing Board Area and took his signature is the relevant admission given by him. Why he has given false address in the chief affidavit, why that discrepancy in the evidence of DW-1 and DW-2 with regard to his place of residence occur. If really, he did had intention to execute the Will, he would have called him and other witnesses and informed them about his wish and he intends to dispose the property. That means, he has stated that he doesn't know whether Sri.Thimmaiah had capacity to write the Will. When Sri.Thimmaiah was severely suffering from liver ailments and was under treatment 1½ years prior to his death, question of he and Sri.Nagaraj brought the Will where DW-2 was sitting in Rajajinagara Housing Area, doesn't arise at all. What he has stated that he has read over the Will and Sri.Thimmaiah had executed the Will in favour of his daughter, cannot be appreciated at all. It is the strong suspicious circumstance regarding execution of the Will. Further, non-disclosure of execution of Will after the death of Sri.Thimmaiah and dispute arose between the two wives and PW.2 - elder brother of Sri.Thimmaiah had arranged for transfer of katha in the names of both wives, goes to show that at that relevant point of time, if at all Will was in existence, certainly that will be brought to the notice of PW-2 and other panchas. Therefore, under what circumstances PW-2 had arranged to transfer the katha in both the names of Smt.Thimmamma and Smt.Gowramma was taking into consideration that Smt.Thimmamma is the first wife and Smt.Gowramma is the second wife and through second wife defendant is born and they are residing in the suit schedule property itself. Therefore, the evidence of DW-2 is not convincing to prove the genuineness of the Will. Mere examining one attesting witness is not sufficient. All the ingredients and requirements under law need be fulfilled.

22. The learned counsel for the plaintiff has relied on the decisions reported in:

- 1) ILR 2008 KAR 2115, in the case of Sri.J.T.Surappa and another vs Sri.Satchidhanandendra Saraswathi Swamiji Public Charitable Trust and others.
- 2) AIR 2004 Supreme Court 1772, in the case of Uma Devi Nambiar and others v. T.C.Sidhan (dead).
- 3) AIR 1976 Supreme Court 794, in the case of Navneet Lal @ Rangi v. Gokul and others and
- 4) AIR 1972 Supreme Court 2492, in the case of Pushpavati and others v.

Chadraja Kadamba and others.

In the above said decisions their lordships have exhaustively consider regarding how Will has to be proved and all the requirements to prove the Will. Also their lordships have laid down principles how to prove the Will and how to appreciate the evidence by the court.

23. Here, the evidence of DW-2 goes to show that he was not present when the testator affixed his signature on the Will. Therefore, due execution is held as not proved. Other circumstances, the conduct that DW-1 admits in the cross-examination that Will was not produced or brought to the notice of PW-2 at the time of Panchayath nor it is produced before BBMP Authorities at the time katha was transferred in the joint names of Smt.Thimmamma and Smt.Gowramma. The test laid down in the above said decision is applied to the present facts of the case, certainly goes to show that Will has not been proved to the satisfaction of the court and the defendant has failed to remove all suspicious circumstances surrounding the Will. Therefore, it is needless to say that the defendant cannot claim that she is the testamentary heir to deceased Sri.Thimmaiah.

24. One more argument that is canvassed by the learned counsel for the plaintiff that as the property was granted in favour of late Sri.Thimmaiah by the Government under "Ashraya Scheme", free of cost, the grantee has no absolute right to execute the Will or transfer the property. He has relied on decision reported in (2008) 9 Supreme Court Cases 607, in the case of K.V.Sudarshan v. A.Ramakrishnappa and others, wherein land was granted under Inam and in that context it is held that Inam lands cannot be regarded as a individual property of the grantee. Section 6-A of Mysore (Religious and Charitable) Inams Abolition Act was discussed. Here, site was granted in favour of late Sri.Thimmaiah under "Ashraya Scheme" on certain conditions. He himself has constructed building, shop premises, leased to the tenants. There is no question of violation of any conditions of the grant. When Will executed by him is held as not proved, automatically it is wide open as it is the self acquired property of the deceased Sri.Thimmaiah, his legal heirs i.e., his wife - Smt.Thimmamma and daughter through Smt.Gowramma i.e., defendant, are entitled to succeed to the property as they are Class I heirs. As well as under Section 16 of Hindu Succession Act, defendant No.2 is entitled to succeed the assets left behind by her father. Her mother doesn't have the status of wife, as such she is not entitled to get any share in the property. Though, PW.1 - Smt.Thimmamma had pleaded that as she doesn't bore children to her husband, they fostered one Savithri till they performed her marriage. In one breath she has stated that they adopted, even PW-2 has stated that they fostered Savithri, this fact was denied by the defendant. Here, one lady accompanying PW-1 to the court during hearing dates and PW-1 is stated that she is Savithri. But nothing is brought on record to prove that Savithri was the fostered daughter, adoption is also not proved. If Savithri is brought up by Sri.Thimmaiah and PW-1, atleast Ration card, Voters ID, Aadhaar Card, some documents should have been produced to evidence the same. More over, Savithri is not a necessary party to this suit nor she was arrayed as party. It is not the case of the plaintiff that, Savithri is having share in the suit schedule property. When she herself says that, Savithri doesn't have any share, such pleadings and evidence given by PW-1 and PW-2 doesn't alter the situation. PW-1 is an old women might have taken assistance of Savithri doesn't mean that, she is a fostered or adopted daughter. No proof is forth coming to prove that relationship. As it is mother of DW.1 - Smt.Gowramma doesn't have any status of wife of Sri.Thimmaiah because of void marriage, as such under Section 16 of the Hindu Succession Act DW-1 succeeded along with PW.1 - Smt.Thimmamma, who is Class I heir of deceased Sri.Thimmaiah. Therefore, both are entitled to get

half share each in the suit schedule property.

25. Therefore, much is made by the learned counsel for the defendant in cross-examination of PW-1 that she is also residing in the first floor of suit schedule property separately and receiving rentals of 2 shops and some third party is instigating her and if she is not keeping well the defendant is looking after her. But it has come in the evidence that DW-1 after vacating the tenant who is running the Wine Shop in the said place she has been running a Departmental Store. It has come in the evidence that behind the portion, which according to her is vacant which belonged to the plaintiff she has been using the same. PW.1 has stated that the defendant and her mother are receiving rentals from big shops and she is hardly receiving rentals from 2 shops i.e., Rs.3,000/- per month. All these things are matters need be appreciated while determining the mesne profits, that can be decided at the time of final decree proceedings.

26. The plaintiff has produced Ex.P6 - certified copy of order sheet in O.S.No.7594/2009 filed by the present defendant against Smt.Thimmamma and Smt.Gowramma seeking for injunction in respect of suit schedule property. Ex.P7 is the plaint copy of the said suit. Ex.P8 is the written statement filed by Smt.Thimmamma, who was defendant No.1 in that case, she has denied the right of present defendant in the said case. That means, only while filing the said suit first time she has whispered about the Will Deed. DW-2 has not clarified when it was franked in the Office of the Sub-Registrar. He was totally ignorant about it. Even DW-1 has also not given satisfactory answer. It also shows that Ex.D2 is a suspicious document. The genuineness of its execution and was it the intention of the testator and had he actually executed it, are not proved to the satisfaction of the court. Therefore, it is needless to say that the defendant cannot be regarded as testamentary heir to late Sri.Thimmaiah to succeed the assets under the alleged Will - Ex.D2 dated 20.02.2004. The very filing of suit for injunction against her own mother and PW-1 shows her greediness over the property as rightly argued by the learned counsel for the plaintiff. Therefore, it is only plaintiff and defendant succeeded to the suit schedule property on the death of the deceased Sri.Thimmaiah as his legal heirs, entitled to get half share each.

27. The defendant has failed to prove that suit is bad for non-joinder of necessary parties. Merely because it is standing in the joint names of plaintiff and mother of defendant - Smt.Gowramma, it doesn't give any right to Smt.Gowramma, to claim share in the property or assert right independently. Accordingly, I answer Issue Nos.1 and 3 in the negative & Issue Nos.2 and 5 in the affirmative

28. Issue No.4:-

In this case, the defendant has contended that suit is not properly valued and court fee paid is insufficient. She has not assigned any specific reasons for the said defence. Merely because PW-1 has stated that the defendant after assaulting PW-1 she was driven out, cannot be a ground that she is out of the suit schedule property, because previously they resided together. It has come in the evidence of DW-1 she is residing in the first floor one portion. She is suffering from B.P. and other ailments. To prove it, she has produced Ex.P9 to P13 - medical prescriptions and reports. An aged

woman, may be suffering from age related problems, but when court enquired before the court she has stated that there is no chance of any settlement. She has accused against the defendant regarding the atrocities she has suffered in her hand. If lawful sharer wants to lead independent life by taking her share in the property, other party cannot deny it. It has come in evidence of DW-1 that, PW-1 is residing in the first floor in one portion and she is collecting rentals from 2 small shops. Therefore, the plaintiff has correctly valued the suit under Section 35(2) of Karnataka Court Fees and Suits Valuation Act and maximum court fee of Rs.200/- is paid. As such, it is held that the defendant has failed to prove Issue No.4. Accordingly, I answer Issue No.4 in the negative.

29. Issue No.6:

For the forgoing reasons, I proceed to pass the following:-

ORDER Suit filed by the plaintiff against the defendant is hereby decreed.

It is declared that the plaintiff is entitled to get half share in the suit schedule property and entitled to get her half share carved out separately by metes and bounds and get possession.

Enquiry regarding mesne profits is left open for determination at the time of final decree proceedings.

Having regard to their relationship, parties to bear their own costs.

Draw a preliminary decree accordingly. (Dictated to the Judgment Writer on computer, typed by her, the transcript thereof corrected and then pronounced by me, in open Court, this the 26th day of October 2016) (BAILUR SHANKAR RAMA) 42ND ADDL. CITY CIVIL & SESSIONS JUDGE, Bengaluru.

ANNEXURE I. List of witnesses examined on behalf of:

(a) Plaintiff's side:

PW.1 - Smt.Thimmamma PW.2 - Sri.K.Thimmegowda

(b) Defendant's side:

DW.1 - Smt.Varalakshmi DW.2 - Sri.K.H.Arethimmappa II. List of documents exhibited on behalf of:

(a) Plaintiffs' side:

Ex.P1 : Death Certificate of Thimmaiah

Ex.P2	:	Katha Extract
Ex.P3	:	Electricity Bill
Ex.P4	:	Katha Extract
Ex.P5	:	Death Certificate of Thimmaiah
Ex.P6	:	Certified copy of Order Sheet in O.S.No.7594/2009
Ex.P7	:	Certified copy of Plaint in O.S.No.7594/2009
Ex.P8	:	Certified copy of Written Statement O.S.No.7594/2009
Ex.P9 to 13	:	Prescriptions and Analysis Results
Ex.P14 & 15	:	Receipts
Ex.P16 & 17	:	Medical Bills

(b) Defendants' side: Nil.

Ex.D1	:	Death Certificate of Thimmaiah
Ex.D2	:	Will dated 20.02.2004
Ex.D2(a to e)	:	Signatures of Thimmaiah
Ex.D2(f)	:	Signature of DW-2
Ex.D2(g)	:	Signature of Nagaraj

Ex.D3	:	Katha Extract
Ex.D4	:	Marriage Invitation

42nd ADDL. CITY CIVIL & SESSIONS
JUDGE, BENGALURU.